

JURISDICTIONAL STATEMENT

Complaint was filed in the United States District Court for the Northern District of Illinois, Western Division, Rockford, Illinois, on the 10th day of April, 1987. Jurisdiction in that Court was based upon 28 USC 1331, 28 USC 1343, 28 USC 2201, and pursuant to the provisions of 42 USC, 1983, 1985, 1986 and 1988, ancillary, pendent claim and pendent party jurisdiction, Bill of Rights and the Fourteenth Amendment.

MEMORANDUM OPINION AND ORDER was dated in the Court below on the 3rd day of October, 1988, granting Motion to Dismiss as to Defendant Mahoney and Summary Judgment to other Defendants. This appeal is from that final order and other adverse rulings.

Appeal to the United States Court of Appeals for the Seventh Circuit was invoked pursuant to 28 USC 1291 by Notice of Appeal filed in the Court below on the November 1, 1988, from the final decision of the Court below dated on the 3rd day of October, 1988. Appellants appeared below and here under 28 USC 1654.

STATEMENT OF THE CASE

A. NATURE OF THE CASE: This action arises from a civil complaint for damages for violation of 42 USC 1983, 1985, 1986, 1988; Bill of Rights; Amendment 14; trespass and conversion; relief under 28 USC 2201 and Rule 60(b). The predicate facts for such complaint stem from an Illinois state action in replevin of farming assets done without notice. Defendants are the state judge, sheriff and deputies, bank, bank directors and officers, lawyers and law firm who participated in such state action.

B. COURSE OF THE PROCEEDINGS: Complaint in this action was

filed April 10, 1987. Motions to dismiss and for summary judgment were filed by the various Defendants. Cross motion for summary judgment was filed by Plaintiffs. Plaintiffs filed motion to strike extraneous material, for expedited discovery, and to reconsider denial of discovery. Both sides filed motions to supplement the record. District Court dismissed complaint as to state judge on the merits and granted summary judgment to other Defendants.

Action in federal court was commenced for violation of rights arising from state court proceeding. That action was one in replevin without notice. No hearing on merits was ever held. Matter was appealed to Illinois Appellate Court, and then to Illinois Supreme Court. Writ of certiorari to United States Supreme Court was denied.

C. STATEMENT OF THE FACTS: On April 11, 1985, the sheriff of Stephenson County, Illinois, acting through several deputies and in the company of various bank officers and others arrived unannounced at the farmstead of the Hunzikers, and without any prior notice to them seized their farm property. (Doc.1, P. 6-8; Doc. 71, P. 27-33). Hunzikers filed removal petition of that matter to federal court prior to any hearing being held in the state court. The federal court entered order of "denied", but has never ordered remand. (Doc. 85; Doc. 91; Doc. 74, P. 6; Doc. 73, P.5-8) The property was disposed of by the state court without any hearing ever being held on the taking or the merits. (Doc. 1, Para. 72, 73, 61, 94-102; Doc. 71, p. 23, 32) Purported consent decree was entered in the state proceeding, which the

Hunzikers subsequently ascertained was void for lack of jurisdiction ab initio. (Doc. 71, P. 34-47). State matter was appealed to Illinois Court of Appeals (Doc. 71, P. 48-9) and Illinois Supreme Court. Certiorari to the United States Supreme Court was denied. (Doc. 82; 90).

Complaint (Doc. 1) was filed in District Court in this proceeding for violation of federal rights by the state judge, sheriff, bankers, lawyers and others. (Doc. 1, Para. 94-102). The District Court refused discovery (Doc. 114, P. 29; Doc. 64; Doc. 88 & 89) and dismissed the state judge and granted summary judgment to the other defendants. (Doc. 102) This appeal is from such final order.

ARGUMENT

ISSUE NO. I: IN RULING UPON THE MOTIONS AND PURPORTING TO FOLLOW THE TRADITIONAL COMMON LAW RULE, THE DISTRICT COURT ERRED IN NOT ACCEPTING ALLEGATIONS OF THE COMPLAINT AS TRUE UPON THEIR FACE, AND THEREBY

A. FAILED TO RECOGNIZE THAT ALLEGATIONS STATING CLAIMS OF VIOLATION OF CLEARLY ESTABLISHED LAW REQUIRED THAT THE MATTER PROCEED TO DISCOVERY PRIOR TO ANY CONSIDERATION OF MOTION FOR SUMMARY JUDGMENT.

All well-pleaded allegations of the Complaint must be taken as true in considering such motions. Gomez v. Toledo, 446 U.S. 635, 636 n.3; Scheuer v Rhodes, 416 U.S. 232 (1974).

Judge Nordberg states that "Since plaintiffs can prove no set of facts to support their claim for damages against Defendant Mahoney, their complaint against him is dismissed with prejudice" (Page 10). Judge Nordberg's statement assumes that under no circumstances can a judge be liable, and really translates to "if he's a judge, he can't be sued". In so

stating, he erroneously assumes that immunity intervenes in all circumstances to protect the defendant from having to stand trial AT ALL. Absolute immunity DOES NOT protect him from standing trial where "...plaintiff's allegations state a claim of violation of clearly established law..." Mitchell v. Forsyth, 86 L.Ed. 411, 425 (1985). Judge Nordberg rather derisively quotes from the complaint in footnote 4 of his ruling, and characterizes the complaint as a "cornucopia brimming with alleged violations of the federal Constitution, laws and Declaration of Independence, state statutes and common law, and even the natural law." But then by rather inverse and contorted logic (allegations of more egregious violations to be given more minimal credence); in violation of the requirement that such allegations are deemed true when considering such motions; and in complete affront to the plain language of Mitchell (86 L.Ed.2d at 425), the Fourteenth Amendment and Section 1983, he totally ignores that the complaint DID plainly allege that Defendant Mahoney and other defendants had acted in "violation of clearly established law", and without jurisdiction. What the District Court has done is to extend the concept of judicial immunity to immunity from suit under all circumstances.

Judicial immunity is an affirmative defense. Granted, as in situations involving sovereign immunity, judicial immunity may be effectively lost if the case is erroneously allowed to go to trial. However, the matter cannot be so simply resolved as to describe the office as "judicial" and thereby remove ALL possibility of responsibility.

The law starts from the basic tenet that an individual is accountable for wrongful conduct. Westfall v. Erwin, 108 S.Ct. 580, 583 (1988). This applies to all individuals in government-executive or judicial. Furthermore, the privilege is not bestowed automatically. One asserting it has the BURDEN OF PROVING ENTITLEMENT. Westfall, at 585. It is not available in all situations. Where an actor knows he lacks jurisdiction to act he should be made to hesitate. Case of the Marshalsea, *infra*. Where he knows his actions will violate basic constitutional rights he should be made to hesitate. Mitchell v. Forsyth, *infra*. Where he can be expected to know that his conduct will violate clearly established law he should be made to hesitate. Harlowe v. Fitzgerald, 457 U.S. 818, 819 (1982). As was specifically set forth in Mitchell v. Forsyth, 86 L.Ed. 411, 425:

"Unless the plaintiff's allegations state a claim of violation of clearly established law, a defendant pleading qualified immunity is entitled to dismissal before the commencement of discovery. (citation) Even if the plaintiff's complaint adequately alleges the commission of acts that violated clearly established law, the defendant is entitled to summary judgment if discovery fails to uncover evidence sufficient to create a genuine issue as to whether the defendant in fact committed those acts."

In Westfall v. Ervin, *infra*. the Supreme Court found that there was a GENUINE ISSUE OF MATERIAL FACT as to whether conduct was entitled to absolute immunity. In the context of judicial liability under the Fourteenth Amendment and Section 1983, allegations of no subject matter jurisdiction and of violations of clearly established Constitutional rights likewise define genuine issues of material fact. As was observed in Gomez v.

